Contract Descriptions and Usages

1. **AGENCY AGREEMENT** – An agreement that allows an agency or individual to act on the artist's or producer's behalf to procure promotional engagements, appearances, shows, and interviews.

2. **ARTIST AND PUBLICIST AGREEMENT** – An agreement that is used once a recording artist (you) has finished recording an album and now aims to promote the new album, as well as, promote a tour for the album. A publicist is the professional an artist will hire get to help in many promotional endeavors. This agreement solidifies the working relationship between the artist and publicist, outlining the promotional duties the publicist will engage in on the artist's behalf.

3. **BAND PARTNERSHIP AGREEMENT** – An agreement to be used when working in a duo, band, or group situation to ensure all terms and roles within the band partnership are clearly defined. Additionally, this contract provides provisions for how band members may be fired and/or quit, as well as, covers publishing and copyright concerns.

4. **BOOKING AGREEMENT** (Comprehensive) – An agreement to present to booking agents, club owners, or promoters for when booking a show or performance. This agreement provides protection when booking a show outside your home city and covers all bases for the booking, as well as guarantee payment. Read over this agreement carefully. This agreement heavily protects traveling artists/performers (you) and may cause some talent buyers to negotiate.

5. **BOOKING AGREEMENT** (Sales-Based) – An agreement to present to booking agents, club owners, or promoters when booking a show or performance. Sales-based pay depends highly on an artist/band's ability to draw a crowd. This agreement protects both parties, ensuring performance booking and payment terms.

6. **CO-PUBLISHER AGREEMENT** – An agreement to use when 2 parties agree to co-publish a musical composition(s) or collection(s). This agreement covers copyright ownership and publishing receipt percentages, as well as, performance rights assignments.

7. **COPYRIGHT ASSIGNMENT** – An agreement to use when a songwriter, recording artist, or music producer professionally sells a copyrighted work to another party. This agreement ensures the copyright transfer is official and secure. Plus, it's a great way to impress and show clients the songwriter, artist, or producer (you) is a music industry professional.

8. **PUBLISHING AGREEMENT** – An agreement to use when an artist does not have access to the resources and/or is not self-financed to promote one's music and thus chooses to work with a party who does have necessary resources, thus signing a publishing deal with the artist. This publishing agreement provides for a payment schedule, flat fees, and different royalty payments.

9. **RADIO RELEASE AGREEMENT** – An agreement to use when sending a recording artist's music (your music) to a radio station. If an artist's music is already copyrighted and published, often times the radio station may hesitate to play the music without a radio release agreement. This agreement ensures the radio station know that they are fully free to play the work.

10. **RECORD RECORDING AGREEMENT** – An agreement to use when a company is willing to pay an artist to record an album. This is a nice, concise agreement where terms of payment and promotion are flexible and may be worked out easily. Pay special attention to the publishing portions of this agreement. Be sure to get the terms that you want as an artist.

11. **SPONSORSHIP AGREEMENT** – An agreement to use if an artist has an album release, a tour, or even a single show coming up to assure the sponsors that their dollars are safe and that the artist (you) are serious about promoting their product. It also protects the artist, ensuring the sponsors act on their promises that are now signed for.

The enclosed professional music contracts were exclusively drafted and authenticated by the registered Los Angeles Entertainment Lawyer Jillian Ivey, Esq. for ModernBeats Inc. These contracts were created through ModernBeats Inc's envision to provide its valued customers with the specific and necessary contractual forms needed to protect career endeavors and survive in today's Music Industry. For professional legal guidance and services contact Jillian Ivey, Esq. at 323-799-1342 or www.jilliansidoti.com.